

BH Documents Gist 04/2026

1. No voluntary saying, No voluntary commit crime, no voluntary admit a crime.(deny!deny!deny!)
 2. Surrender to Police, right now you can't physically beat cops, don't panic, don't run.
 3. no case is perfect, try to fix your own bugs, your own deficient as more as possible, and try to find bugs of your opponent in the court, like cops/Government Attorney/IJ/, do they violate due process of your rights(totality of the circumstances).
 4. Try habeas corpus, if you are in detention center, Rodriguez bond, Gonzales bond.
 5. Jurisdiction, circuit court,
 6. Appeal, never surrender (both removal hearing and bond hearing)
 7. Use Motions in immigration court, not abuse. Like motions to reopen, motions to reconsider, motions to continue(小庭的时候用), motions to suppress(对自己不利的证人和证词), motion to ask a bond hearing, motion for extension(BIA appeal 的时候用), Motion for Stay of Removal Motion to remand(case pending in BIA, remand to IJ)
 8. Smart, don't be silly, do not commit serious crime, like violence, if you only commit crime in immigration law not criminal law, you still have chance to get relief in immigration court. Remember, Immigration law in the US is controversial.
 9. Do not accept prosecutorial discretion(PD) or voluntary departure, fighting for your case until the end!
 10. Work hard, not seek true or false, show me your strength to beat the prosecution team in court!
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1. Think before answer a question, answer only the question asked, ask for clarification if do not understand the question.
 2. The most powerful words are "I don't know and I don't remember"

Asylum所有的文件都需要翻译成英文!

你不需要拿到所有的evidence才能Win!

(具体各种证据I'm Afraid to Go Back--A Guide to Asylum, Withholding of Removal, and The Convention Against Torture P.22列了7种evidence)

Detain 6 个月不给bond hearing或者IJ deny, file to BIA同时在district court file Habeas Corpus

你可以在detention Center delay interview/removal hearing, 说你需要时间来prepare case或者找到律师。

asylum和withholding case中最难证明的就是nexus

IJ cut you off, do not let you testify fully 或者不让你说话, ICE attorney aggressive in questions 都可以成为BIA appeal的理由

大庭一般不给延期motion to continue, 小庭就可以找理由申请延庭。

(Motions for a continuance P. 21)

Turn negatives into positives

(Getting a Bond-Your Keys to Release from Detention P.11)

没法全款付bond 才需要bail company来loan

(Getting a Bond-Your Keys to Release from Detention P.14)

小庭上就可以提出来bond hearing, 如果judge拒绝了bond, 那么就在detention center 打庭

(How to Get a Bond P.9)

Sponsor必须是公民或者绿卡

(How to Get a Bond P.11)

Bond hearing are separated from removal hearing

主要看有没有long time in detention center

1. Flight risk

2. Danger to the community

如果对于ice detention center 不满，可以先给warden写信，如果回复不行，再给ICE field officer写信反应情况。

你可以向warden申请transfer to another facility.

(How to Get Medical Care While You Are in ICE Custody P8, P9)

Ice detention center有law library 可以上网 打印 复印，可以存电子文档，跟lawyer可以用teams视频 (confidential legal call), 所以最后把所有文件都上传自己的cloud, 共享给中介和lawyer.
(Legal Access in Detention)

Past Persecution/Well-Founded Fear of Future Persecution 都需要4 elements

1. Harm, or feared harm, rises to the level of persecution
2. 5 Protected Grounds
3. Nexus
4. State Action(The persecution was committed by the government, or by force that the government was unable or unwilling to control.)
5. Discretion

Bars to Asylum

1. One year bar
2. Firm resettlement bar
3. Aggravated felony bar
4. Frivolous Asylum Claim
5. Previously filed Asylum application
6. Reinstated removal order

5 Bars to Asylum and Withholding

1. Persecutor bar
2. Particular serious crime bar
3. Serious nonpolitical crime bar
4. Security threat bar
5. Terrorist bar

Persecution : Severe harm

Non-physical violence -> persecution

(Deprivation of liberty, food, housing, employment, or education)

IJ considers the harm in the aggregate, Multiple incidents considered together, if escalating in nature.

Religion Persecution: Harm inflicted for practicing a specific religion, criminal penalties imposed for practicing a certain religion.

Nexus: a link between the harm and a protected ground

State action: The home country's government(e.g. Police Officers)

Past Persecution established -> a rebuttable presumption of Well-Founded Fear of Future Persecution
unless DHS proved by a preponderance of the evidence:

1. A fundamental change in circumstances OR
2. Safe and reasonable internal relocation is available

Well-Founded Fear of Future Persecution must be

1. Subjectively genuine

(**Subjective Prong** is satisfied by an applicant's **credible testimony** that he or she genuinely fears harm.)

2. Objectively reasonable

(**Objective Prong**

1. Prove **persecution in the past**
2. By adducing **credible, direct, and specific evidence** in the record of **facts** that would support a reasonable fear of persecution.

)

If the persecutor is the Government or Government-sponsored, then internal relocation is presumed to be unreasonable.

Withholding of Removal is Mandatory

Seek Withholding when ineligible for Asylum because one or more Asylum bars.

Withholding of Removal more likely than not they will be subject to persecution

1. Greater than 50% chance
2. A higher burden of proof than Asylum

Public official including On-duty police officer

Deferral of Removal under CAT:

1. applicants ineligible for Withholding of Removal Based on their criminal history.
2. Continued detention of the noncitizen may be possible

(Department of Justice-Asylum, Withholding of Removal, and Protection Under the U.N. Convention Against Torture)

Well-Founded Fear of Future Persecution 比 Past Persecution 更难建立 (harder to establish)

Past Persecution Incidents: 5H1W

When, Where, Why, Who, What, How

If the persecutor is government, no need to show about internal relocation.

(Immigration Justice Campaign-Asylum Eligibility in the United States)

Prior deportation order 在9th circuit, reinstatement order 在11th circuit, withholding-only proceeding 在11th circuit, appeal也在 11th circuit, 不能change of venue到9th circuit.

Immigration Court lack jurisdiction to review prior Expedited Removal Order

只要DHS issues reinstatement order, prior order 就不能reopen 或者review了

Court 不审理Visa Denial

IJ 对你做出不利的判决, 可以30天内上诉到BIA

All courts rule that individuals who subject to reinstatement are ineligible for Asylum.
(P.20)

Filing a motion to reconsider or reopen after the reinstatement proceeding is complete.

Individual is eligible for withholding of removal or CAT if placed in reinstatement proceeding.

(Reinstatement of Removal-Practice Advisory)

在自述中提到在教会中担任某样重要职务后遭到严重迫害 (这样story更显合理)

Physical harm is not required for a persecution, 不需要说自己被police打的很惨! (即使是最保守的fifth circuit case)

Persecution may be emotional or psychological, as well as physical.

BIA挂了以后, 也是30天内appeal 到circuit court.

挂了以后, 一直appeal 直到circuit court, keep fighting and take all necessary appeal!!!

(Great Decision on Jurisdiction, Withholding, and CAT Out of ..the Fifth Circuit(Case Study))

3种not credible 的情况:

1. Testimony was internally inconsistent on material.(证词和材料不一致)

2. Testimony lack sufficient details(证词缺乏细节)
3. Testimony was not consistent with country condition.

Credible/Reasonable Fear Interview允许reschedule, 有更多的时间来找律师和prep case.

最后会有Summary of Testimony.

Keep your answer directly and shortly.

(Record of Determination-Credible Fear Worksheet)

In withholding-only proceeding, individuals who have been detained at least 6 months, entitle to a prolonged detention bond hearing.(180 days)

DHS bear the burden of justifying the continued detention with clear and convincing evidence.

Withholding-only Proceedings 和普通的removal proceeding一样, 挂了30天内可以appeal到BIA, BIA挂了30天内appeal到circuit court, 区别只是withholding-only proceeding不能申请Asylum.

ICE 没办法remove 你, 也只能最多6个月.

Prolonged detention hearing, DHS bears the burden of proving

1.flight risk

2.danger to the community

By “clear and convincing evidence”

能bond出来no criminal convictions是关键.(当事人Mexican多次illegal reentry US)

All individuals detained in the 9th circuit who have reached or will reach 6 month in detention could have a bond hearing in front of an immigration judge.

6个月后有bond hearing是due rights.

如果bond被拒绝了, 每6个月再开一次bond hearing.

Gonzalez Bond除了withholding-only proceeding的人, 还包括下面三种:

1.Final removal order

2.BIA's denial of a motion to reopen removal proceedings

3.Stay of removal

都只能最多detain 6 months.

两个Prolonged Detention bond case:

1.Rodriguez VS Jennings

2. Zadvydas (Zad) VS Davis

这个case 是 Gonzalez VS Sessions

(Gonzalez Bond for Prolonged Detention(Case Study))

Fear of persecution must be the applicant's primary motivation in seeking asylum status.

However, it need not be the only motivation.

(P.12)

(Well-Founded Fear-RAIO Combined Training Program)

One year filing rule exception:

1. **Changed Circumstances**(可以是personal change or country change)

2. **Extraordinary Circumstances** which preventing from applying.

(Lin VS. Holder (Case Study))

Adverse credibility determination 证据 (evidence)比行为 (demeanor)重要。

Ren's testimony is credible, 推翻了IJ认为Ren不可信的结论, 尽管Ren上庭时表现很差。

但是拒绝Ren的理由是，Ren 没有提供证据 (evidence), **do not meet his burden of proof**.

第二巡回法院 (2nd Circuit)指出，people **lack of detailed knowledge about religion**'s doctrinal tenets, **can be persecuted** for their religious affiliation.

主要原因是，Ren 没有提供arrest的证明和受洗的证书。

Justice Posner when he wrote:

“Anyone who has ever tried a case or presided as a judge at a trial knows that witnesses are prone to fudge, to fumble, to misspeak, to misstate, to exaggerate. If any such pratfall warranted disbelieving a witness's entire testimony, few trials would get all the way to Judgment.”

(Ren VS. Holder 2011(Case Study))

No immigration case is fast and easy!!!
(Landerholm)

Having to practice religion underground to avoid persecution is itself a form of persecution.

Shi demonstrates past persecution, there is a persecution that he has a well-founded fear of future persecution, except could avoid future persecution by internal relocation.

(Shi VS. AG 2018(Case Study))

Persecution requires more than harassment or intimidation.

Evaluate harm cumulatively, each fact alone not persecution, the facts taken as a whole way do so.

Circuit Court only review BIA's decision.

(Shi VS. AG 2013(Case Study))

Double jeopardy, the prohibition against being punished twice for the same crime, generally does not apply to U.S. immigration proceedings because these proceedings are considered civil, not criminal. This means an individual can face separate consequences, such as a criminal sentence, an immigration-related prison term, and deportation, for the same actions without violating the Double Jeopardy Clause of the Fifth Amendment.

Minor inconsistencies, do not go to the heart of the asylum claim, **are insufficient** to support an **adverse credibility** finding.

Speculation and conjecture cannot form the basis of an **adverse credibility** finding, which must be **based on substantial evidence**.

Persecution 不需要physical harm!!!

Harsh conditions in an overcrowded prison cell, even absent physical beatings, established past persecution.

(Li VS. Holder 2009(Case Study))

Violate student **due process** rights.

Revoke student(F-1) **visa** and **terminate** student **status** without any criminal record and protest activities.

Did not consider any facts relevant to Plaintiff's individual circumstances nor did it provide any explanation.

(Xiaotian Liu VS. Noem 2025(Case Study))

Individual's apparent ability to leave China without any problems, would not be sufficient on its own to support the adverse credibility finding.

离开中国没有问题，**不能**作为adverse credibility finding.

Because the reasons(BIA/IJ) provided for **the adverse credibility finding fail**, we must accept the respondent's testimony as **true**.

Attendance at “**weekly meetings at the police station**”, the individual(Lai)’s answer is **NO**.

自己的case 不需要说去police station weekly meeting/attendance after release, 说了自找麻烦, 直接answer **NO**.

在cross-examination时, 面对Gov attorney 和IJ的盘问时, 又自己临时加上很多内容, 造成翻车.

不需要court现场**加上新的内容**, **court testimony**就根据自述和589的来, 跟**自述**, **589**, **证据一样和一致**就好了, 说死了。

Omissions are less probative of credibility than inconsistencies created by direct contradictions in evidence and testimony.

Mere omission of details is insufficient to uphold an adverse credibility finding.

Church fellow 直接说到了出国到了US就不再联系了, 就完事了!!!

即使有omissions/inconsistencies, court上需要本人亲自对omissions/inconsistencies做出合理的explain.

(Lai VS. Holder 2014(Case Study))

Liu use faked passport undermine her credibility.

免签国家 (**VWP**(Visa Waiver Program))只能做**asylum-only proceeding**, 有**发达国家的**passport办理**BH**, 反而是**坏事**.

persecution的几种**形式**

Arrest, Interrogation, detention, prosecution, imprisonment, illegal searches, confiscation of property, surveillance, beatings or torture might cross the line from harassment to **persecution**.

(10种**persecution**的形式)

每一次encounter cops, 理论上都需要遭到程度不同的harm.

(Liu VS. Ashcroft 2004(Case Study))

Conjecture and speculation can **never replace substantial evidence** as the basis for an **adverse credibility finding**. **Minor Consistencies/Minor Omissions** will **not** support an **adverse credibility finding**.

IJ需要给respondent一个**解释Consistencies/Omissions**的机会.

It is inappropriate to base an adverse credibility determination on an applicant’s

Inability to obtain corroborating affidavits **from relatives or acquaintances living outside of the United States**—such corroboration is almost **never easily** available.

Inconsistencies must go to the “**heart of asylum claim**” to justify an **adverse credibility finding**.

Cumulative effect of **all the incidents** a petition has **suffered, rises to the level of persecution**.

受洗时间重要!

法庭要求背诵 (recite) 主祷文Lord’s prayer 和十诫 (ten commandments)

Finding persecution where a Chinese Christian was arrested, detained twice, physical abused(beatings), and forced to sign an affidavit renouncing his religion, after he participated in illegal religious activities ...

(Guo VS. Ashcroft 2004(Case Study))

Individual interrogation room

After arrest, 根本不需要说去**police station report**, 说report 反而把事情搞复杂了, 直接说**不去house church**就完事了, 或者**secretly attend house church**.

现实的case 可以是**不同的police officer**, 因为**interrogation**的警察都是**随机**分配的.

只是**禁止发宗教书**——> **X persecution**

禁止参加service, worship ——> **persecution**

Petition was prohibited only from attending his particular house church and that he therefore could have potentially worshiped at a church associated with a different Christian denomination. Even if true, we reject the proposition that the existence of state-sanctioned congregations—a notion antithetical to the freedom of religion—somehow mitigates the persecution that Petition suffered.

禁止参加house church, 但是允许参加state-owned church, 不能mitigate persecution 程度.

警察要求签保证书, 以后不得参加house church.

Asylum seeker, under threat of penalty, to stop practicing his religion, persecution is established.

只是arrest 不构成CAT claim, CAT 太难成立了!!!

A beating may constitute persecution, even when there are no long-term effects and the petition does not seek medical attention.

Suffered no permanent injuries, in part because police beat him with a baton.

(Guo VS. Sessions 2018(Case Study))

强拆也可以归为political opinion, 因为song是leader, song组织了100多人的peaceful Protest against Government policy, 不仅仅是要求增加compensation.

哪怕一般的被打也不构成torture, CAT 太难成立了!!!

Physical violence is persecution.

Song experienced past persecution at the hands of the local government, where he was tortured and beaten by police and by his cell mates at the encouragement of the police, force to stay in a squatting position all night, and when he refused to cooperate with interrogators, he was beaten until he could not walk.

(Song VS. Sessions 2017(Case Study))

被arrest以后, 还是可以return to government job 没有任何negative consequences, 还是可以get passport, 败笔!!!

Guo有很多次事件(成功), Prasad只有一次(失败) (unable to show more than a single, isolated encounter with the authorities.)

The authorities did not prevent him from attending the house church.

No record that Gu was disallowed from meeting with and discussing his religion with others or disallowed from praying or worshiping outside his home.

(败笔!!!)

Hearsay of Gu's friend is less "persuasive" or "specific" than a first-hand incident.

Chinese authorities 要找他, 只是hearsay, 没有evidence.

Gu先参加了三自教会, 受洗也在三自, 后面才转到了house church.败笔!!

需要appeal 你所有的denial relief to BIA

(Asylum, Withholding and CAT)

(Gu VS. Gonzales 2006(Case Study))

Harm rises to the level of persecution.

Only harm suffered in the country of nationality counts.

Persecution 包括physical harm 和non-physical harm.

Non-physical harm includes severe economic disadvantage or the deprivation of liberty, food, housing, employment.

Persecution 一种定义“punishment of harm for political or religious that this country does not recognize as legitimate.”

Persecution must rise above the level of mere 'harassment'.

Persecution is physical harm ... or nonphysical harm, such as refusing to allow a person to practice his religion.

No requirement that an individual suffer "serious injuries" to be found to have suffered persecution.

Serious threat made against an applicant may constitute persecution even if the applicant was never physical harmed.

Cumulative instances of harm, considered in totality, may constitute persecution.只要每次harm都属于protected grounds.

Acts do not amount to persecution when considered separately can amount to persecution when considered cumulatively.

One may hold passionate political or religious convictions, the hindrance of which would cause great suffering.

1. One serious incident/threat

(1.2.) Both → persecution.

2. Several incidents/acts(consider together)

Torture always rises to the level of persecution. (torture比persecution更加严重)

The right to freedom of religion. Deprivation of these rights → persecution.

Only(merely) harassment or discrimination X→ persecution

Harm Increase in severity(escalation).

Arrest/detention by a government official(a minor beating) → persecution.

Confiscation of property 也属于harm, 至于是否rise to the level of persecution, 要看具体情况具体分析.

Multiple brief detentions(considered cumulatively) → persecution.

Evidence of mistreatment during detentions → persecution.

Deprivation of liberty, food, housing, employment, or other essentials of life.

Need not demonstrate a total deprivation of livelihood 来证明 harm amount to persecution.

A large-scale confiscation of property → persecution.

The applicant continued to be employed X→ persecution.

可以继续工作, 绝对是case的败笔!!!

Psychological harm alone → persecution.

Mental harm alone → persecution.

Forced compliance with religious laws or practices that are abhorrent to an applicant's beliefs

属于mental harm(Psychological harm).

Forced to renounce religious beliefs / desecrate an object of religious importance

→ persecution(如果当事人有strong religious beliefs)

A government agent is responsible for the persecution, it is unnecessary to consider whether the applicant sought protection from the police or other government entity.

(Reporting of the persecution Not always required)

Discrimination, harassment, and economic harm 迫害程度比arrest/detention 来的低, 但也可以作为harm的一方面. 单纯的这三种(Discrimination, harassment, and economic harm)不能rise to the level of persecution.

Economic harm can ... factor into the past persecution. It depends on the severity of the deprivation in connection with the record as a whole.

Applicant had difficulty finding and retaining employment. Her employers dismiss her after knowing that the police were often summoned to her house.

(解雇也属于一种economic harm)

一定要说难以保持工作, 雇主解雇!!!!

甚至可以说dismiss from job due to some reasons I do not know.

Handcuffed her and brought her to the local police station.

Mere economic disadvantage or the inability to practice one's chosen profession

X→ other serious harm (persecution).

(Definition of Persecution and Eligibility Based on Past Persecution(RAIO Combined Training Course))

Nearly all the immigration reliefs are discretionary.

Determine whether persecution is on account of protected grounds(nexus)

1. Persecutor
2. The harm suffered or feared
3. The applicant's characteristic or belief
4. The motivation of the persecutor

Both the persecutor and the applicant could have mixed motivation.

(迫害者迫害applicant 和applicant 申请asylum 都可以有mixed motivation)

“One central reason” motivating the persecutor to harm the applicant.

A cause of persecution is economic does not necessarily imply that there cannot exist other causes of persecution.

The government has mixed motives and punished the applicant for both a violation of a criminal law and on account of his or her possession of a protected belief or characteristic.

Consider all facts + Country condition to determine the case.

A law that criminalizes attending unregistered religious group meeting is not a law of general applicability and harm suffered by an applicant under such law would be considered harm suffered on account of his or her religion.

Direct and circumstantial evidence.(两种evidence)

The applicant bears the burden of proof to establish a nexus between the harm, or feared harm, and a protected ground.

The asylum office should elicit all information relevant to the nexus determination.

Consider culture and patterns of persecution within the applicant's country of origin.

A belief or characteristic is the basis for an asylum claim.

The persecutor's statements and actions are evidence of motivate.

There are laws in the applicant's country prohibiting the practice of certain religions.

Country of origin information provides circumstantial evidence.

Religious person三要素: belief, identity, way of life.

Could establish a nexus based on his choice not to practice in religion.

The asylum office should avoid viewing the case through the prism of your own experiences and world view.

Claims based on purely personal matters, criminal activity, economic gain and law of general applicability fall outside the protection of asylum law.

1.Treatment of similarly situated individuals.

2.Country of original information(provide context for the persecutor's actions)

这两种都可以作为circumstantial evidence.

Many applicants based their asylum claim on a well-known faith(e.g., Christian).

Freedom of religion, including

right to have or adopt a religion of one's choice;

The freedom, either individually or in a community with others and in public or private;

To manifest a religious belief in worship observance, practice, and teaching;

The right not to be subjected to coercion that would impair freedom to have or adopt a religion or belief of one's choice.

The applicant has the right to live an openly religious life in his or her country of origin, and there is no requirement that an applicant conceal his or her religion to be eligible for protection.

Department of State annual report on international religious freedom serves as a resource for religious persecution claims.

General form of religious persecution

1. Prohibition of membership in a religious community
2. Prohibition of worship in private or in public(两个ship)
3. Prohibition of religious instruction
4. Forced renunciation of religious beliefs or desecration of objects of religious importance
5. Serious measures of discrimination imposed on persons because they practice their religion or belong to a religious community.

Punish for possessing "improper" religious values.

Applicant's real or perceived values are "at least one central reason" motivating the persecutor.

Such motivation(上面一句里的Motivation) establish the harm is on account of religion in asylum case.

Country of origin helps you evaluate how the authorities view individual who violate religious laws.

民主国家基本无法做political opinion 的asylum claim.

In a asylum claim, protected ground must be "at least one central reason for persecuting the applicant".

If the persecutor is motivated solely by a desire for economic gain, or purely personal vengeance, there is no nexus to a protected ground.

The applicant's possession or imputed possession of a protected characteristic must be part of the motivation for persecuting the applicant.

No requirement that the persecutor be motivated only by a desire to overcome or change a protected belief or characteristic.

Some forms of persecution on account of religion includes

1. Seriously impede an individual's ability to practice his or her religion
2. Punishment for violating religious-based laws
3. Forced compliance with religious laws that are abhorrent to an applicant's own beliefs.

US law requires specific evidence, Direct and Circumstantial, that the persecutor is motivated by a protected belief or characteristic that the applicant possessed.

The applicant does not have to demonstrate physical harm or threats of physical harm because "Persecution" is not limited to physical harm or threats of physical harm.

The applicant must demonstrate that the harm he or she feared, if carried out, would rise to the level of persecution.

Suffered harm, or have a well-founded fear of suffering harm, would rise to the level of persecution.

Summon to local police station(也属于一种harm)

(Nexus and the Protected Grounds(except PSG)(RAIO Combined Training Course))

Deportation Proceeding = Removal Proceeding

直接跟office说 I'm afraid to(afraid of going) go back to my home country

Have been deported before

——> reasonable fear interview

Convicted of an aggravated felony

If you express fear, you must have the chance to tell an asylum officer your story, you have the right to seek protection.

Only pass the credible/reasonable fear interview, you can see an immigration judge or ask for a bond.

Credible fear interview threshold ——> Significant possibility

Reasonable fear interview threshold ——> Reasonable possibility, higher than Significant possibility, wait longer than Credible fear interview

If you decide to leave detention, your level of proof will be higher in the future.

The government attorney might argue that you were really not afraid because you choose to go back to your home country.

所以一定要坚持在detention center fighting your case, 不管多大的困难, 横竖一条心, 上帝会帮你。

Preparing for your interview, will make your case stronger.

You can lose your case if the interpreter does not translate properly.

所以Credible / Reasonable fear interview do not need a translator for me.

Police harmed you before in your home country.

What the police said to you during the persecution incidents

The police wearing the cloth which has police insignia with police and 警察Chinese character.

After Credible / Reasonable fear interview, the asylum office will write a summary of what you said in the interview, you can correct what is wrong in the written summary.

如果Credible / Reasonable fear interview 挂了, 可以找IJ review一把

如果IJ review也挂了, 在9th circuit, 还可以review IJ's decision 通过habeas corpus.

(A Path to Asylum--A Guide to Credible and Reasonable Fear Proceedings)

Ice detention Center在哪里, 那就在那里fear interview.

Reasonable Fear Interview 跟Credible Fear Interview 过程类似, 只不过higher standard.

(From significant possibility to reasonable possibility)

If pass Reasonable Fear Interview, the individual can seek withholding of removal or deferral of removal only, cannot get asylum.

If the alien express fear of returning to his country, he must refer to the asylum office for a reasonable fear interview.

Form I-871 ——> reinstate prior order

Asylum office requires training and interviewing experience before conduct reasonable fear interview.

Asylum office does affirmative asylum interview, credible fear interview, reasonable fear interview一起的.

M-488 information on reasonable fear interview

G-28 Notice of Entry of Appearance of Attorney or Representative(律师或者法律代表出席旁听面试form)

允许defer推迟 reasonable fear interview

允许reschedule interview.

reasonable fear interview 基本都是电话面试.

How many times have you entered the United States?

1.2012-08

2.2012-10

3.2013-08

4.2017-08

5.2018-04

6.2019-12

Asylum Office 需要提供解释inconsistent & details 的机会

Asylum Office最后会draft a summary, read it to the alien, 最后需要alien agree the summary.

Paralegal 不能作为interview 的representative.

The alien or his representative may request for **reschedule** the interview, either for **the alien to obtain representation**, for the **representative to prepare the case**, or for the **representative to practice in the interview**, but this deferral **may not be for an unreasonable length** of time.

(推迟reschedule 面试的几种方式)

The authority may deny a request to reschedule an interview, if consistently submits reschedule requests.
The interview must be rescheduled to occur no more than ten court days later.

If the representative does not appear, asylum officer may continue with the reasonable fear interview with the alien's written waiver and verbal consent.

The reasonable fear interview **does not** allow alien to **present witness**, however, the alien may **present evidence, relevant to the possibility of persecution or torture**.

Asylum officer 判定标准

1. **Credibility Determination. (Alien's testimony credible)**
2. **Reasonable Fear Determination.**

AO should elicit information related to possible bar to withholding.

Mandatory Bars 对于reasonable fear 决定不影响。

AO must flag the Mandatory Bars in the interview.

只要persecution or torture 一个成立即可pass the interview.

Human rights abuser 是persecutor bar, terrorist也是bar, 都通不过interview!

保持冷静回答问题, 不要落入persecutor bar 和terrorist bar.

2022开始, all new court packets must be electronically submitted to the EOIR courts & Appeals System.

immigration court 材料提交都**电子化**了, 不需要纸质版本!!!

Affirmative 申请589, 如果有prior deportation/removal order —> asylum interview直接变成reasonable fear interview.

AO should ask the alien has any medical problems and whether he will have any special needs for the interview.

AO should notify ICE the alien failed to appear in the interview.

The **confidentiality** protect information in the **reasonable fear interview**.

(Reasonable Fear Procedures Manual)

Credible/Reasonable Fear Interview 标准比正式的asylum要低。

Pass Credible/Reasonable Fear Interview三要素

1. Credibility
2. Consistency
3. Details

宗教信仰类的CFI/RFI

家庭教会，因为信仰被打压，审讯，拘留。

模拟问答稿

I was persecuted for my Christian faith. I was detained by the police after participating in a house church gathering. I fear that if I return, I will be arrested again or even sent to prison.

Our house church was raided, and I was taken to the police station.
I won't be allowed to practice my faith.

Through any other countries before arriving in the US?

Yes, I went through Thailand and Mexico. I did not apply for asylum there because I did not feel safe, and I could not stay there long-term.

准备一份中英文对照的个人经历时间线（Timeline）

面谈可携带简短的陈述笔记和纸质资料(根据资料临场发挥)

(CFI Question and Background)

美国移民系统并不开放，高度复杂而且审核严格

非法移民不是都是违法进入，许多人是合法入境后身份失效

移民不管合法非法，并非只是“受益者”，同样为美国社会做出了巨大贡献

申请asylum不等于撒谎，而是一条充满风险的法律抗争之路

大多数移民工作，纳税，推动经济发展

Asylum申请是严格，充满压力且高拒绝率的程序

Asylum Law (INA & 208), credible determination

移民对于GDP和税收贡献巨大，填补了劳动力空缺

大部分移民长期无法使用福利，非法投票视为刑事犯罪

福利资格审查（如公共负担规则）

移民一直是美国历史和文化的一部分

美国移民是全世界最复杂，难度最高的体系，可以说是移民界的天花板（ceiling）

美国移民大致分成几类：

1.家庭类移民（family based immigration）

美国公民或永久居民申请其亲属（配偶，子女，兄弟姐妹，父母）

2.职业类移民

EB-1C(跨国企业高管)

3.人道主义移民

难民，庇护申请者，U Visa & T Visa

4.Diversity Lottery(多样性抽签)

美国签证有不低的拒签率

每种移民类别都有年度配额

移民美国需要经历一段长期，复杂，具备高度不确定性的过程

一半以上的“非法移民”是持有有效签证合法入境美国后，因为签证到期，身份丧失但是未能离境而“逾期滞留”的人

180天非法滞留 ——> 三年禁止入境禁令

超过一年非法滞留 ——> 十年禁止入境禁令

虽然身份“非法”，但很多人有工作，配偶，家庭，孩子在美国出生是美国公民
越境者往往在边境向CBP自首并且申请asylum

大多数移民勤奋工作

无证移民无权申请任何联邦福利

Asylum制度是根据美国移民法和国际公约设立的人道保护制度，真正获得批准的庇护申请人，往往经历了极为复杂，漫长而且痛苦的程序

Asylum applicant 必须提供可信和支持性证据 (Evidence), 接受移民官和法官的Cross Examination (交叉询问) 与可信性审查。不同法官之间批准差异极大。

移民局和法官具有复杂的甄别credible的机制

Asylum是一条以血泪换来的法律路径

3D 的犯罪不要碰

Drug, DUI(Drive under influence), Domestic Violence

移民整体上是税收贡献者，是年轻的劳动力供给者，是创新驱动的参与者，是维持美国人口与经济结构稳定的关键力量。

移民往往填补本地人不愿从事的岗位。

移民往往进入**底薪高强度行业**（农业，建筑，酒店，家政等），填补缺口。

公立学校义务教育适用于所有儿童，包括无证移民子女。

美国边境既不是“想进就进”的无人之地，也不是彻底封锁的人道死角。

第二代，第三代移民几乎全部转向英语。

美国是一个不断重塑，更新，自我反思的国家。

(移民常见误区)

美国是世界上最强大的民主国家，每一个中国人只要来到美国，都有权利和资格申请asylum.

只有申请了BH, lost status, case才会去immigration court

回答问题要直接，明确

Appeal to BIA within 30days, if you lost the case(3种relief一种也没拿到，直接deny,这时候直接appeal).

随便找证人上庭时case lost的主要原因

个人在国内受到迫害的证据 (evidence)

1. **逮捕证**
2. **搜查证**
3. **传唤证**
4. **拘留证**
5. **判决书**
6. **释放证**
7. **参加活动照片**
8. **教会成员资格证**

身份证，出生证明，户口本需要有公证书

当事人参加的事件如果有新闻报道，法官比较重视美国英国的主流媒体报道，New York Times, Washington Post等。

一个合格的移民律师

1. 熟悉中国的政治制度和社会情况

中国基本没有信仰自由，三自教会都是官方管理和主办的，参加家庭教会就会被官方处罚。

先前的判例对于现在的case具有约束力

2. 美国法庭都是以English 审理case

法律文书，证据Evidence都需要翻译成English, 请律师最好也要“货比三家”

大量的移民case 大部分文案工作都是paralegal做的，律师主要负责上庭。

Declaration 应该是你自己的作品

第一部分：你的个人情况

第二部分：你在国内遭受到迫害的情况

自述书model:

任何诱惑和逼迫都不能让我放弃信仰

让我留在美国这个自由的国度，留在上帝的爱中

自述书可以谢谢自己的个人情况

最后可以说说心愿和为USA未来做出的贡献

中国拘留所 是大通铺，20平方米关了20人左右

协助中国政府迫害过他人，无法申请asylum(Persecutor Bar)要当心！

2005 Real ID Act 提高了 asylum的门槛

Otherwise credible testimony ... unless the applicant does not have the evidence and cannot reasonably obtain the evidence(asylum需要evidence, 除非申请人没有证据，不能合理的获得evidence)

(BH不求人)

A ‘Refugee’ is defined as any person who is unwilling or unable to return to his home country

‘Because of past persecution or a well-founded fear of future persecution on account of race, religion, nationality, political opinion or membership in a particular social group.

An applicant bears the burden of establishing that he or she is eligible for asylum.

An applicant for asylum and withholding of removal bears the burden of establishing eligibility.

The court “look at the totality of the circumstances in deciding whether a finding of persecution is compelled”

.....and the restrictions on Petition’s ability to practice her religion cumulatively amount to persecution.

Various forms of physical violence, including rape, torture, assault, and beatings, amount to persecution.

An applicant’s failure to “seek medical treatment for the injury suffered is hardly the touchstone of whether the harm amount to persecution”.

The court will “generally look at all of the surrounding circumstances to determine whether ... threats are actually credible and rise to the level of persecution.”

Mere threats, without more, do not necessarily compel a finding of past persecution.

threats of violence and death rise to the level of persecution.

Death threats alone can constitute persecution.

Detention and confinement may constitute persecution.

Less than one day, only detained once —→ X persecution

只是一次小于1天的监禁 —→ X persecution

Petition suffered in the United States —→ X persecution

Pattern and Practice of Persecution

An applicant need **not** show that he will be singled out individually for persecution if:

(A) The applicant establishes that there is a pattern or practice in his or her country ...of persecution of a group of persons similarly situated to the applicant on account of ... religion...

(B) The applicant establishes his or her own inclusion in, and identification with, such group of persons...

Continued Presence of Applicant

An applicant's continued presence in her country of persecution before flight, while relevant, does not necessarily undermine a well-founded fear.

(Case show remaining in El Salvador for several months after release from prison did not negate fear)

Possession of a valid passport does not necessarily undermine the subjective or objective basis for an applicant's fear.

The petition could acquire a passport and travel to Beijing for a visa interview despite their travel restriction did not undermine claim of well-founded fear of future persecution.

(ZHAO v. MUKASEY (2008))

An applicant **cannot** be required to practice his religious beliefs in private in order to escape persecution.

If asylum is denied in the exercise of discretion, the applicant remains eligible for withholding.

Asylum Safe Third Country Bar

Noncitizen arriving in the United States from Canada at a land border port-of-entry shall be returned to Canada to seek protection under Canadian immigration law.

The agreement between USA and Canada indicates that noncitizen may apply for asylum, withholding of removal or protection under the Convention Against Torture in one or the other, but not both, countries.

A finding of **firm resettlement** does not bar eligibility for withholding of removal.

Withholding of Removal

A clear probability exists if it is 'more likely than not' the person will be persecuted upon return.

Withholding is a more stringent burden of proof than the standard of asylum.

Withholding "a reason", asylum "one central reason".

A protected characteristic would be "a reason" for future persecution is a "weaker motive" than the "one central reason" required for asylum....

The overall standard of proof is more difficult to meet in withholding cases, the motive for persecution is easier to show.

Withholding of Removal is mandatory.

Under withholding, the successful applicant is only given a right not to be removed to the country of persecution.

(其实也可以找律师打掉，留在美帝)

Past persecution generates a presumption of eligibility for withholding of removal.

Unlike asylum, withholding of removal relief is not derivative.

Persecution-of-others Bar

Withholding is not available if the applicant "ordered, incited, assisted, or otherwise participated in the persecution of an individual" on account of the protected grounds.

Particular serious crime bar

A crime is particularly serious is the convicted immigrant is a danger to the community.

A particularly serious crime is a danger to the community of the United States.

Withholding is not available.

Serious nonpolitical crime bar

Withholding is not available if "there are serious reasons to believe that the alien committed a serious nonpolitical crime outside the United States before".

Substantial evidence—including a Red Notice, an arrest warrant.

其实红通也可以找seasoned lawyer打掉

Convention Against Torture

Two forms of protection under the Convention Against Torture

(1) withholding of removal

(2) deferral of removal for noncitizens entitled to protection but subjected to mandatory denial of withholding.

Torture is defined as any act by which severe pain or suffering, whether physical or mental, is intentionally inflicted on a person for such purposes as obtaining from him or her or a third person information or a confession, punishing him or her for an act he or she or a third person has committed or is suspected of having committed, or intimidating or coercing him or her or a third person, or for any reason based on discrimination of any kind, when such pain or suffering is inflicted by or at the instigation of or with the consent or acquiescence of a public official or other person acting in an official capacity.

Torture is more severe than persecution.

To receive relief under CAT, Petitioner has the burden of showing that he “is more likely than not to be tortured in the country of removal.”

Unlike asylum and withholding, there are no mandatory bars to an applicant seeking deferral of removal under CAT.

An alien who has engaged in terrorist activities is ineligible for asylum, withholding of removal and withholding under CAT, but remains eligible for deferral of removal under CAT.

Although an applicant will be denied withholding of removal under CAT if the Attorney General has reasonable grounds to believe that the applicant is a danger to the security of the United States, he may still be eligible for deferral of removal under CAT.

Even a persecutor may be eligible for deferral of removal.

Withholding entitles the alien to remain indefinitely in the United States and eventually to apply for permanent residence.

Deferral of removal also prevents removal, but does not confer lawful or permanent status.

Withholding 最终还是可以有申请green card的机会，deferral 是没有的，所以一定要争取Withholding!!!!

Adverse credibility findings are reviewed under the substantial evidence standard.

An Adverse credibility finding under the REAL ID Act, the court “must look to the ‘totality of the circumstances and all relevant factors.’”

Such factors include, but are not limited to, an applicant’s “demeanor, candor, or responsiveness” as well as the consistency between an applicant’s statement and other evidence in the record.

When each of the IJ’s or BIA’s proffered reasons for an adverse credibility finding fails, we must accept a petitioner’s testimony as credible.

(rejecting the proposition that foreign government documents must be authenticated by official certification pursuant to 8 C.F.R. § 287.6 and holding that a document can be authenticated by any evidence sufficient to support a finding that the item is what the proponent claims it is).

Failing to authenticate [foreign documents] may not serve as a basis for an adverse credibility determination without some evidence of forgery or other unreliability.

The IJ/BIA must provide a petitioner with a reasonable opportunity to offer an explanation of any perceived inconsistencies that form the basis of a denial of asylum.

Specificity and detail

The level of specificity in an applicant’s testimony is an appropriate consideration.

The lack of detail in an applicant’s testimony can be a relevant factor for assessing credibility.

证词之类的要详细

When an applicant “supply only vague assertion” and gives “few details” at the merits hearing(大庭), the lack of detailed testimony can support an adverse credibility finding.

大庭需要有细节，其实就是大庭前把testimony 弄得滚瓜烂熟。

Substantial inconsistencies damage a claim and support a negative credibility finding.

The court has “rejected adverse credibility findings that relied on differences between statements a petitioner made during removal proceedings and those made during less formal, routinely unrecorded proceedings”.

The court “hesitate to view statements given during airport interview as valuable impeachment sources because of the condition under which they are taken and because a newly-arriving alien cannot be expected to divulge every detail of persecution he or she sustained.”

Sworn airport interview statement was a reliable impeachment source that supported adverse credibility determination.

State Department and other Government Reports

The court will not infer that a petitioner’s otherwise credible testimony is not believable merely because the events he relates are not described in a State Department document.

不能因为事件没有出现在国务院报告中，而认为不可信。

The REAL ID Act permits the agency to consider any inconsistency in the petitioner’s testimony, regardless of whether the inconsistency implicates the “heart” of the petitioner’s claim for relief.

Failure to authenticate cannot support an adverse credibility determination absent some evidence of forgery or other unreliability.

Speculation that a document is unreliable merely because other documents from the same region have been forged in the past can hardly be regarded as substantial evidence.

The failure to seek asylum in the first country in which an applicant arrives does not necessarily undermine a credible fear of persecution.

However, an applicant’s voluntary return to her home country may be considered in rendering an adverse credibility determination.

除非回去后又有了新的persecution.

Affidavits from close relatives in Western Europe and from individuals in the United States should be “easily available”.

IJ must determine whether an applicant’s credible testimony alone meets the applicant’s burden of proof. If it does, no corroborative evidence is necessary. If a credible applicant has not yet meet his burden of proof, then the IJ may require corroborative evidence. If corroboration is needed, however, the IJ must give the applicant notice of the corroboration that is required and an opportunity either to produce the requisite corroborative evidence or explain why that evidence is not reasonably available.

Country conditions evidence generally provides the context for evaluating an applicant’s credibility, rather than corroborating specifics of a claim.

Failure to obtain consular certification of foreign official records is not a basis to exclude corroborating documents.

Failure to testify to the authenticity of medical records, or to present original documents, was insufficient to support negative credibility finding.

(各种证据不需要原件)

Failure to authenticate foreign documents may not serve as a basis for an adverse credibility determination absent evidence of forgery or other unreliability.

(Relief From Removal (9th Circuit, March 2022))

An appeal goes from IJ to BIA and then to the 9th Circuit.

You cannot appeal decisions to the 9th Circuit that are discretionary—such as Cancellation of Removal.

You can appeal to the 9th Circuit, such as Asylum, Withholding of Removal, or Convention Against Torture(CAT).

因为Asylum discretionary, 是Withholding 是mandatory, 你bundle 3 things together, 有了mandatory component.

You should file a Petition for Review to the 9th Circuit immediately.

Once the BIA dismiss your appeal, ICE can deport you.

Contact the 9th Circuit and ask permission to file an emergency petition for review if:

You are notified that you will be deported in the next 2 days.

Since you are detained, you may not have access to a fax or email. Give a family member, friend, lawyer, or someone else signed copies of all of your paperwork and ask them to fax or email for you.

Within 30 days of the date of the BIA's decision, you must file a petition for review at the 9th Circuit. 比如BIA dismiss 1月1号, 9th circuit 必须收到你的petition 1月31号.

BIA挂了你, 你30天内必须上诉到9巡.

The 9th Circuit cannot consider late petitions. You cannot ask for an extension of time to file your petition for review. So, you must make sure your petition is filed within 30 days.

The date BIA dismiss your case is on the front page of the BIA decision.

The law library in the detention center has a petition for review form.

With your appeal to the 9th Circuit, you can include the following forms:

Petition for Review.

Motion for Stay of Removal.(I-246 form)

You should submit a copy of BIA decision with your petition for review.

You will need 4 copies of everything.

Public Access to Court Electronic Records(PACER), you can see what is happening in your case.

Unlike an appeal to the BIA, a petition for review to the 9th Circuit does not automatically keep you in the United States while your appeal is pending.

To remain in the U.S. during your appeal, you must file a separate motion for a stay of removal with your petition for review. (I-246)

If you file a motion for a stay of removal, the 9th Circuit will automatically give you a temporary stay while it decides your motion.

Have your petition for review and motion for a stay of removal ready to send to the 9th Circuit before the BIA makes its decision.

提前准备好I-246 form stay of removal.

The 9th Circuit can only consider your case after the BIA has dismissed your appeal.

一旦return to your country, 上诉基本挂了 (moot).

An Order to Show Cause is the 9th Circuit's warning that it may not be able to consider your case.

If judge tells you that you are not eligible to ask for a bond, you may be able to file a habeas corpus petition to the district court.

1. Judge 告诉你ineligible for bond

2. Gov appeal 你的bond, 不让你出来

这两种情况都可以file Habeas to the district court

9th Circuit dismiss your case 理由:

1. Your case does not have strong argument.

2. Court does not have jurisdiction.

Ask for an extension to file a reply to the government's arguments.

9th Circuit set you a date for you file your Opening Brief and a date for the government to file its Answering Brief.

In a small number of cases, the 9th Circuit asks each side to present an oral argument to the 3 Judges who will decide the case.

You file informal brief, your lawyer file formal brief.

Immigration case at the 9th Circuit can take a long time.

Detained case —> at least 1.5 years

Non-detained case —> at least 2-3 years

In many cases, the 9th Circuit will send your case back to BIA(remand).

Lost your case in 9th Circuit

1. Petition for panel rehearing. (Ask the same 3 judges to reconsider their decision)

2. Petition for rehearing en banc. (11 judges of the 9th Circuit to reconsider the court's first decision)

3. Writ of the certiorari to the Supreme Court(only grants a very small number)基本可以放弃这条路，概率太低
4. Motion to reopen your case.

If you do not file a petition for rehearing or a writ of certiorari, the 9th Circuit's decision will be final when the mandate issues.

(How to File a Petition for Review in the Ninth Circuit Court of Appeals)

“Habeas corpus” is a right protected by the Constitution and allows individuals to challenge their detention or imprisonment as unlawful.

Challenge your detention by ICE and to request a bond hearing in front of an IJ:

1. Detained without a bond hearing for more than six months?(其实情况不到6个月也可以Habeas一把)
2. Removal proceedings are still pending before IJ, BIA, or a Circuit Court?
3. IJ rules that you are ineligible for a bond hearing or IJ does not have jurisdiction to grant you bond: because you came to the US seeking asylum classified as an “arriving alien”.

Answer yes to the above question. And you can file a habeas petition and request a bond hearing in front of an IJ. Most habeas petitions are filed pro se.

Golden State Annex and Mesa Verda detention facility:

File Habeas corpus in federal district court for the Eastern District of California.

How to file a habeas petition:

1. Fill out Petition for writ of Habeas Corpus(form)
2. Filing fee is \$5
3. Mail the originals plus 2 copies and the filing fee to the address:

Office of the clerk

United States District Court for the Eastern District of California.

A petition for a writ of habeas corpus in an immigration case is filed in federal district court and can be filed electronically through the court's online system, known as CM/ECF

If you are moved to a different detention facility while your habeas petition is pending, be sure to inform the habeas court. The judge should keep your case, even if ICE transfers you somewhere else.

The judge will likely take several months to make a decision. If your petition is granted, the judge will probably order the government to provide you a bond hearing before an IJ within a certain period of time.

Only “brief” detentions —> roughly a month and a half in the vast majority of cases which is invoked

Five months in the minority of cases which non-citizen choose to appeal(就是5个月就不是brief detentions)

The non-citizen has been detained for approximately six months, continuing detention becomes prolonged.

Detention becomes prolonged after six months and entitles petition to a bond hearing.

Even absent A Bright-Line Six-Month standard, an individualized bond hearing is required when detention becomes unreasonably prolonged.

Each year, thousands of noncitizens are incarcerated for lengthy periods pending the resolution of their removal proceedings.

For noncitizens who have some criminal history, their immigration detention often dwarfs the time spent in criminal custody. (“Between one-half and two-thirds of the class served “criminal” sentences less than 6 months.”)

In some cases the conditions of their confinement are inappropriately poor.

Courts applying these standards in this Circuit have repeatedly held that prolonged detention without a hearing before a neutral adjudicator violates procedural due process.

9th Circuit applied the Matthews test to hold that the detention of a noncitizen detained under a different detention statute, did not violate due process.

Courts that apply a reasonableness test have considered 4 non-exhaustive factors in determining whether detention is reasonable.

The reasonableness is “high fact-specific”.

The most important factor is the duration of detention.

Duration is evaluated along with “all the other circumstances,” including (1)whether detention is likely to continue, (2)reasons for delay, and (3)whether the conditions of the confinement are meaningfully different from criminal punishment.(reasonableness test 总共这四个因素)

Noncitizens should not be punished for pursuing “legitimate proceedings” to seek relief.

It ill suits that the U.S. to suggest that petition could shorten his detention by giving up these rights and abandoning his asylum application.

Courts should not count a continuance against the noncitizen when they obtained it in good faith to prepare their removal case, including efforts to obtain counsel.

The duration and frequency of these requests[for continuances] do not diminish his significant liberty interest in his release or his irreparable injury of continued detention without a bond hearing. (所以continuances 可以多次持续使用, 不影响最终释放和bond hearing !!!)

Petition's confinement and experiences at a facility operated by a private, for-profit prison contractor demonstrate that their conditions of confinement are not meaningfully different from those of criminal punishment.

At hearing, the gov must justify ongoing detention by clear and convincing evidence.

To justify prolonged immigration detention, the gov must bear the burden of proof by clear and convincing evidence that the noncitizen is a danger or flight-risk.

Gov bear the burden of proof by clear and convincing evidence is also supported by application of the 3-factor balancing test from Matthews vs. Eldridge. (Matthews Test)

1. An individual's private interest in "freedom from prolonged detention is "unquestionably substantial".
2. The risk of error is great where the gov is represented by trained attorneys and detained noncitizen are often unrepresented and may lack English proficiency. Detained noncitizens are incarcerated in prison-like conditions that severely hamper their ability to obtain legal assistance, gather evidence, and prepare for bond hearing.
3. placing the burden on the gov impose min cost or inconvenience to it, as the gov has access to the noncitizen's immigration records and other info that it can use to make its case for continued detention.

Due process requires consideration of alternatives to detention.

Detention is not reasonably related to this purpose if there are alternative conditions of release that could mitigate risk of flight.

ICE's alternatives to detention program—the Intensive Supervision Appearance Program—has achieved extraordinary success in ensuring appearance in removal proceeding, reaching compliance rate close to 100% (IASP脚环项目成功做到了到庭率接近100%)

Alternatives to detention must be considered in determining whether prolonged incarceration is warranted.

The due process clause of fifth amendment forbid the gov from depriving any person of liberty "without due process of law".

In the alternative, issue a Writ of Habeas Corpus and order petition's release within 30 days unless Respondents schedule a hearing before an immigration judge.

Petition has remained in ICE custody since that date. Petition's removal proceeding remain pending.

(Guide to File a Pro Se Habeas Petition for People Detained by ICE in the Golden State Annex and Mesa)

The Privilege of the Writ of Habeas Corpus shall not be suspended, unless when in Cases of Rebellion or Invasion the Public Safety may require it.

District courts jurisdiction to grant Habeas Corpus to people who are held in custody.

The Real ID Act, however, does not impact the ongoing availability of Habeas Corpus to challenge the length or conditions of immigration detention.

Zad vs. Davis(2001) address whether the gov could detain a removable person indefinitely beyond the removal period.

District court decisions in habeas corpus proceedings are appealed to the appropriate court of appeals.

The proper "custodian" to be named in habeas immigration cases: specific ICE detention center Warden.

(Introduction to Habeas Corpus)

2nd Circuit looked to the cumulative effect of "collateral or ancillary" inconsistencies and omissions in assessing the applicant's credibility, stressing that the credibility factors must be evaluated in the totality of circumstances. IJ based his adverse credibility determination on certain inconsistencies and omissions between her testimony and her documentary submissions.

Lin's failure to include the length of her detention in her asylum application.

Friends, father之类的根本没必要提及, 反而造成inconsistencies, 被IJ找到bug, 完全可以说证人找不到或者证人失联.

(Xiu Xia Lin Vs. Mukasey 2nd Circuit 2008(Case Study))

In 2001, the Supreme Court ruled in the Zadvydas that noncitizen that have a final order cannot be indefinitely detained.

If you receive a final removal order and have still been detained by ICE, they re-consider releasing you on 90 days after the final order and again on 180 days.

Ordered Mr.D removed, lost his appeal to BIA, Mr.D then filed a motion to reopen at the BIA, while is pending. It is possible ICE could deport him even while his Motion to Reopen at the BIA is pending unless the court orders a “stay of removal”.

Ms.B petitions the Circuit Court of Appeals for review of the BIA’s decision. Circuit Court of Appeals will not stay her deportation unless the Circuit Court of Appeals grants a stay of removal pending the appeal.

Lost in BIA

- 1.—>Motion to Reopen + stay of removal
- 2.—>Appeal to Circuit Court + stay of removal

防止被ICE deport

The federal district court is separate from the immigration court.

The federal district court receives claims about your right to liberty and due process under the U.S. Constitution.

Habeas Corpus determines whether your detention violates your right to liberty and due process and whether you should be released.

There are several reasons why your removal may be unlikely

1. The country you would be deported to does not have a repatriation agreement with the U.S.
2. ICE is not able to send airplane flights to the country.

Mail your **Habeas** documents to the **Clerk** of the Court.

AO 242 Grounds for Your challenge in this petition 要想好合理的理由认真填写。

Memorandum of Law submitted with the Form AO 242.

The memorandum is to provide legal support for your petition.

No significant likelihood of removal in the reasonably foreseeable future, the Gov must respond with evidence sufficient to rebut that showing.”

The longer a noncitizen has been detained, the stronger the Gov’s showing must be.

In order to permit full judicial review of the claims herein and requested relief, petitioner respectfully requests that the Court order Respondent not to transfer Petitioner outside the jurisdiction of this Court pending consideration of this petition.

The Due Process Clause applies to all persons in the United States, “Whether their presence is lawful, unlawful, temporary or permanent.”

US 敌人的country更好，只要坚持住在ICE detention center, 因为没有/很少有 removal flight.

One of 15 countries identified by ICE as least likely to issue travel documents.

(15个最难拿到travel documents的国家居然有中国)

As the length of detention grows, the period of time that would be considered the “reasonably foreseeable future” shrinks.

In the immigration context, the Supreme Court has recognized only 2 valid purposes for civil detention

- 1. to mitigate the risk of flight.**
- 2. prevent danger to the community.**

An Order to Show Cause

In immigration Habeas cases, the court issues an order to show cause and directs ICE to justify detention within 3 days, unless it’s clear the petition has no claim.

ICE(Respondent) are ordered to file a return on the Order to Show Cause why the petition for a Writ of Habeas Corpus should not be granted.

(Guide to File A Lawsuit Demanding Release From Indefinite Immigration Detention Edition 1)

Capital cases in Habeas can result in the death penalty or life without parole.

Challenging the constitutionality of immigration detention under 28 U.S.C. & 2241

Emergency Relief. To ensure that the application receives the appropriate prompt attention from the court, if the petition seeks immediate release from detention or other emergency relief, the word “EMERGENCY” should be clearly and prominently set forth on the first page of the initial document filed and, if the petition is being filed by email, in the subject line.

(Filing a Pro Se Petition Challenging The Legality Of Immigration Custody)

Removal Proceedings may be continued for “Good Cause Shown”, at the IJ’s discretion.

Good factor in the 9th Circuit

1. The nature of the evidence excluded as a result of the denial of the continuance.

The denial of the continuance prevented the petitioner “from fully and fairly presenting her case”.

2. The reasonableness of the immigrant’s conduct

3. The inconvenience of the court

An immigrant’s right to have his or her case heard should not be sacrificed because of the IJ’s heavy caseload.

4. The number of continuances previously granted.

IJ abused her discretion by failing to provide any explanation for her decision and failing to take into account any of the facts and circumstances of cases that were relevant to the grant or denial of a continuance.

An appellate court has jurisdiction to review that decision using an abuse of discretion standard.

An alien is entitled to a “full and fair hearing” that meets the requirements of due process.

Request for additional preparation time.

Good cause for a continuance can be found if the alien makes a reasonable showing that the lack of preparation occurred.

说自己需要更多的时间准备case, 收集evidence 找counsel(lawyer) ! ! ! (延庭Good Cause)

延庭一般最多只有几个月, 年以上的延庭不行。

Request for Continuance to find representation.

IJ abused his discretion in denying a respondent a second continuance to seek counsel where the respondent was detained, made reasonable attempts to obtain counsel, and prior continuance was only 2 weeks.

(几周的continuance一般都可以批准)

第4次延庭被拒 (延庭次数太多)

No abuse of discretion in the denial of a continuance because the respondent had received several continuances before.

Where corroborating evidence has not been presented, the IJ should consider the applicant’s explanations for its absence and whether there is good cause to continue the proceeding for the applicant to obtain the evidence.

If an IJ requires corroborative evidence, then “the IJ must give the applicant notice of corroboration that is required and an opportunity to either produce the requisite corroborative evidence or to explain why this evidence is not reasonably available.

年以上的continuance 基本要被deny

如果IJ给了时间, 你还是找不到lawyer, 那么就只能自己代表自己在下次hearing.

(Bench Guide For Continuances in the 9th & 10th Circuits)

If a noncitizen gets moved during the lawsuit, the original court retains jurisdiction over the noncitizen, regardless of where he gets moved.

只要在ICE transfer 之前 File habeas, 那么还是原来transfer 之前的法庭有jurisdiction.

Defendants in Habeas

Assistant Secretary of DHS for ICE

DHS Secretary

The Warden

Attorney General

Provide sufficient evidence in your Habeas

After filing habeas, the Court will issue an Order to Show Cause.

Make sure that you have immediate access to phone and email for at least 24-48 hours after filing.
Court clerk often provides instructions for how to cure a defective filing.

File了habeas以后，可以立即打电话问clerk 情况，如果filing有问题，可以及时纠正。
Take initiative.

After Filing:

The magistrate judge will review and issue an Order to Show Cause.

Gov Attorney could file return.

you file reply(called traverse).

If TRO or PI requested, work out a reasonable briefing schedule with AUSA.

Someone is eligible for a bond hearing, he/she must exhaust the that remedy first, cannot file habeas for the releasing purpose first.

先file bond ——> bond 挂了——> Habeas

大庭挂了，先appeal to BIA，同时file habeas.

Habeas 的Relief

1. Release
2. Order of new Bond hearing

跟自己类似的Case

He has no criminal record, but he was previously removed.

ICE again arrested him and reinstated his prior removal order.

He pass his reasonable fear interview and is placed in withholding-only proceeding before IJ.

He spends more than 6 months in ICE custody.

Reinstate 也可以File Habeas.

先file bond hearing

IJ 挂了——> Habeas

(Nuts And Bolts of Filing a Petition For Writ of Habeas Corpus In Federal Court)

Most of your interactions with the Court will be through the Clerk's office.

The clerk's office receives documents on behalf of the Court and maintains a record of the documents received.

You may file any document, including a habeas petition, by mailing the documents to the Clerk's office.

Temporary Restraining Order (TRO) 是judge 下令的

Habeas 只有在你被detain了，才能file

Habeas 首先是由magistrate judge 决定是否grant or deny.

Habeas petition brought by individuals detained by U.S. Immigration and Customs Enforcement, challenging the legality of that detention.

Habeas 最好用黑色水笔填写，也可以print.

You can file a Memorandum with your petition explaining your legal arguments.

You can attach exhibition documents in your habeas petition.

A memorandum of law is a document where you explain your legal arguments, only include arguments that support your claim.

Habeas 可以附上memo 和exhibition来支持你的argument.

Sign all the documents(except exhibition)filed in the court.

Submit \$5 filing fee from your prison trust account.

Habeas只要自己留一份copy就好了.

The judge will dismiss the petition if it is clear that you are not entitle to relief.

If a magistrate judge issue a Report and Recommendation in you case and you disagree with the recommendation, you have 14 days to file objection.
Your objection will be reviewed by the district judge.
Your objection to the Report and Recommendation must be specific and related to the magistrate judge finding.
After receiving your objection, the district judge assigned to the case will review the record and make a decision.

(United States District Court District of Minnesota Pro Se Guidebook For Petition For Writs of Habeas Corpus)